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Bill banning ultra-processed foods in California public schools awaits Newsom's signature

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SACRAMENTO — The California Assembly approved legislation with widespread bipartisan support to ban unhealthy ultra-processed foods in the state's public schools.

AB 1264, authored by Assemblymember Jesse Gabriel, establishes a definition of UPFs and directs experts at the California Department of Public Health to identify a subcategory of especially harmful ones to be phased out of public schools by 2035.

The bill underwent three amendments in the Assembly following its introduction Feb. 21 and the Senate made three additional amendments before its eventual passage.

Under the bill, that phase-out would begin no later than July 1, 2029, and beginning July 1, 2032, vendors will be prohibited in offering restricted school foods and ultra-processed foods of concern to any school.

Vendors will be required to provide a report each year, through 2032, to the State Department of Public Health containing each food product sold to a school during the previous year.

The bill was approved unanimously by the California Senate and now awaits signing by Gov. Gavin Newsom, who issued an executive order in January to address the harms posed by ultra processed food. The groundbreaking bill was co-sponsored by Consumer Reports, the Environmental Working Group and Eat Real.

"Foods served in schools should fuel kids' bodies and brains for learning, but harmful ultra-processed foods do the opposite," said Brian Ronholm, director of food policy at Consumer Reports. "They offer little nutritional value and are deliberately engineered to make them hard to resist, which encourages unhealthy eating habits and overconsumption.

"Students should be provided with healthier options at school instead of ultra-processed food that puts their health at risk. This bill will help protect California kids and establish an important new standard for the rest of the nation by getting harmful ultra-processed food out of our schools."

A coalition of industry groups — the American Beverage Association, California Grocers Association and California Farm Bureau among them — opposed the bill. They said in a letter that the bill ropes in too many unintended foods and would create an "unnecessary liability for schools serving these products, as well as manufacturers producing food subject to these arbitrary definitions."

Recent research has linked diets that include a lot of harmful ultra-processed foods — such as soft drinks and packaged snacks — to serious health risks, including cancer, cardiovascular disease, and Type 2 diabetes. An estimated 67% of the calories in food eaten by children, according to a study published in JAMA in 2021, come from ultra-processed foods. A more recent report from the U.S. Centers of Disease Control and Prevention placed that figure at 62%.

The bill defines ultra-processed foods as those "high in" saturated fat, or added sugar, or sodium, (or has a non-sugar sweetener), and contains one or more of certain industrial ingredients, including colors, flavors, sweeteners, emulsifiers, and thickening agents. Raw agricultural products, minimally processed foods, and pasteurized milk are exempt from the definition of UPFs. .

Experts at the California Department of Public Health would then identify a subcategory of "UPFs of concern" to be

phased out of school foods, based upon the following factors:

whether the substance is banned, restricted, or subject to warnings in other states or outside the U.S.;

whether the substance, based upon peer-reviewed evidence, is linked to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity, Type 2 diabetes, or other health harms associated with UPF consumption;

whether the substance is hyper-palatable or may contribute to food addiction;

whether the food meets the FDA definition for "healthy," and whether the food is a UPF due to a "common natural additive."

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